

TENTATIVE RULING

Case: Walker et al. v. County of Yolo et al.
Case No. CV2026-0322

Hearing Date: June 15, 2026 Department Fourteen 9:00 a.m.

County of Yolo's Demurrer and Motion to Strike

As an initial matter, the Court notes that petitioners Edward G. Walker, Heidi Grossman-Lepp, and Sugarleaf Church (collectively, "Petitioners") filed two oppositions to the demurrer and motion to strike ("MTS"). (Opp. #1 [filed 3/30/26]; Opp. #2 [filed 5/26/26].) The Court declines to consider the second opposition filed on May 26, 2026.

Respondent County of Yolo's ("Respondent") demurrer to Petitioners' First Amended Petition for Writ of Administrative Mandamus and Alternative Statutory Administrative Appeal ("Writ Petition") is **OVERRULED**. (Code Civ. Proc., § 430.10, subds. (b), (e).) In addition, respondent's motion to strike portions of the Writ Petition is **DENIED**. (Code Civ. Proc., §§ 435, 436.) The Court finds that Respondent failed to provide Petitioners with adequate notice of the demurrer and MTS. (Code Civ. Proc., § 1005, subd. (b) [the moving papers shall be served sixteen court days before the hearing plus an additional five calendar days for service by mail].)

Parties are **DIRECTED TO APPEAR** for oral argument on **June 18, 2026**, at 9:00 a.m. in Department Fourteen.

Petitioners' Motion for Order Staying Enforcement of Administrative Decision

Petitioners' unopposed motion for order staying enforcement of administrative decision is **DENIED**. (Code Civ. Proc., §§ 1094.5, subd. (g), 1094.8, 526.) The Court finds that a stay of enforcement of the administrative decision would be against the public interest. Code Civ. Proc., §§ 1094.5, subd. (g); *Sterling v. Santa Monica Rent Control Bd.* (1985) 168 Cal.App.3d 176, 187 ["the power to stay a decision pending review which subdivision (g) grants is not absolute; the provision mandates that no stay be imposed when a stay would be against the public interest"].)

Parties are **DIRECTED TO APPEAR** for oral argument on **June 18, 2026**, at 9:00 a.m. in Department Fourteen.

First Amended Petition for Writ of Administrative Mandamus and Alternative Statutory Administrative Appeal

Parties are **DIRECTED TO APPEAR** on **June 18, 2026**, at 9:00 a.m. in Department Fourteen to set a briefing schedule and hearing date.